

Mohd. Owais Siddiqui Alias Owais v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 7 February 2023 · Writ - C No. 2274 of 2023 · **Disposed; paragraph 6.5 objection permitted; recovery stayed if filed in two weeks.**

HEADNOTE

A writ against a recovery certificate of Rs. 90,030, which the petitioner said did not relate to him and which the licensee traced to his grandfather's connection, was disposed of without a finding on liability. The petitioner may object before the competent authority under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. If the objection is filed within two weeks, the authority shall decide it within four weeks, the recovery remaining stayed in the meantime and thereafter abiding by that decision.

FACTUAL SUMMARY

Mohd. Owais Siddiqui challenged a recovery certificate dated 16 February 2022 issued by the Executive Engineer, U.P. Power Corporation Limited, for Rs. 90,030 said to be due from one Owais. He contended that the demand did not relate to him: his domestic connection stood in his father's name and carried no dues. The licensee stated that the connection behind the certificate was in the name of the petitioner's grandfather and that, after the grandfather's death, permanent disconnection had not been obtained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed recovery certificate sent to paragraph 6.5

HOLDING

Where the parties dispute whether a recovery certificate relates to the petitioner or to dues on a predecessor's connection whose permanent disconnection was never obtained, the High Court will not decide that controversy. It will permit an objection before the competent authority under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law. An objection filed within two weeks is to be decided within the next four weeks; the impugned recovery stays until that decision and thereafter abides by it. ¶ 4-7

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate was disposed of by permitting an objection under paragraph 6.5, to be decided by the competent authority in accordance with law, without a finding on whose connection the dues related to. ¶ 4-7

clause-6.5-statutory-remedy-disputed-bill The dispute, whether Rs. 90,030 under the certificate dated 16 February 2022 was the petitioner's liability or dues on his grandfather's undisconnected connection, was left to the paragraph 6.5 objection. ¶ 2-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF RS. 90,030 RELATES TO THE PETITIONER OR TO HIS GRANDFATHER'S CONNECTION, AND WHETHER PERMANENT DISCONNECTION OUGHT TO HAVE BEEN OBTAINED AFTER THE GRANDFATHER'S DEATH

Left to the competent authority on an objection under paragraph 6.5, to be decided in accordance with law ¶ 2-6

